

Order of course, &c." And see *Davis vs. Prout*, 5 Beaven, 375 ; and, even when the first Order has not been acted upon, a second taken as of course will be irregular, (*Brooks vs. Purton*, 4 Beaven, 494).

When a Bill is amended, if any of the amendments extend to more than two folios, the Bill must be re-engrossed and filed, and the Plaintiff pays 20s. to the Defendant, if a further answer is required, but not otherwise.

Re-engrossment.

By an Order of 1843 it is directed :

That where a Bill is amended, and a re-engrossment thereof filed, and a copy of such re-engrossment served on the opposite party under the foregoing Orders, it shall not hereafter be necessary for the Plaintiff to pay such opposite party the usual sum of twenty shillings, unless a further answer be required.

It will be seen, that by the foregoing Orders many descriptions of Bills are abolished, the purposes being attained by simple amendments. All other kinds of Bills, except Original Bills, are abolished by the following Orders :—

When a suit becomes abated after decree, any party entitled to revive the same may do so by petition in the cause, which shall state the title of the petitioner to the relief sought. This petition must be verified by affidavit, and be served upon the solicitors of all parties interested, and, in case any such party has no solicitor, upon such party.

XV.
Suits how
revised.

Petition.

Bills of Review are hereby abolished. When the reversal of a decree is sought upon the ground of error apparent upon the face of the decree, that object may be attained by rehearing the cause, whether the decree have or have not been enrolled. One rehearing may be had upon petition, signed by counsel, as in the case of an ordinary rehearing, as well before as after enrolment, but no petition for a second rehearing shall be filed without leave of the Court first had, upon special motion for that purpose. Provided that this order shall not be construed to authorise the rehearing a cause, in the ordinary acceptation of the term, after enrolment.

XVI.
BILLS of RE-
VIEW abolish-
ed.
REHEARING
on Petition.

Bills in the nature of Bills of Review ; Bills to impeach decrees on the ground of fraud ; Bills to suspend the operation of decrees ; Bills to carry decrees into execution ; are hereby abolished. Any party heretofore entitled to file a bill of review, praying the variation or rever-

XVII.
Other Bills
abolished.
REVERSAL of
DECREE upon
Petition.